

**IN THE COURT OF COMMON PLEAS
OF PIKE COUNTY, PENNSYLVANIA**

KELLI D. DESANTIS,

PLAINTIFF,

V.

[REDACTED] DESANTIS,

DEFENDANT.

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DOCKET # **[REDACTED]**
DIVORCE

ORDER

You, **Kelli D. DeSantis**, have been sued in Court for shared legal custody and primary physical custody, of the following children:

K.F.D., (D.O.B 1)

L.W.D., (D.O.B 2)

T.A.D., (D.O.B 3)

You are Ordered to appear in person at the Pike County Courthouse, Milford, Pennsylvania on _____ at _____ .m. for a:

____ Conciliation Conference

____ A Pretrial Conference

____ Hearing before the Court, Milford, PA.

If you fail to appear as provided by this Order, and Order for custody, may be entered against you or the Court may issue a warrant for your arrest.

You must file with the Court a Verification regarding any criminal record or abuse history regarding you and anyone living in your household on or before the initial in-person contact with the court (including but not limited to, a conference officer or judge or conciliation) but not later than thirty (30) days after service of the Complaint or Petition.

No party may make a change in the residence of a children which significantly impairs the ability of the other party to exercise custodial rights without first complying with all of the applicable provisions of 23 Pa. C.S. § 5337 and Pa.R.C.P. No. 1915.17 regarding relocation.

YOU SHOULD TAKE THIS PAPER TO YOUR LAWYER AT ONCE. IF YOU DO NOT HAVE A LAWYER GO TO OR TELEPHONE THE OFFICE SET FORTH BELOW. THIS OFFICE CAN PROVIDE YOU WITH INFORMATION ABOUT

HIRING A LAWYER. IF YOU CANNOT AFFORD TO HIRE A LAWYER, THIS OFFICE MAY BE ABLE TO PROVIDE YOU WITH INFORMATION ABOUT AGENCIES THAT MAY OFFER LEGAL SERVICES TO ELIGIBLE PERSONS AT A REDUCED FEE OR NO FEE.

Northern Pennsylvania Legal Services
10 North Tenth Street
Stroudsburg, PA 18360
Phone: 570-424-5338

AMERICANS WITH DISABILITY ACT OF 1990

The Court of Common Pleas of Pike County, Pennsylvania is required by law to comply with the Americans with Disability Act of 1990. For information about accessible facilities and reasonable accommodations available to disabled individuals having business before the Court, please contact the Court Administrator (570) 253-0101. All arrangements must be made at least 72 hours before any hearing or business before the Court. You must attend the scheduled conference or hearing.

DATE: _____

BY THE COURT:

Hon. Kelly A. Gaughan, J.

IN THE COURT OF COMMON PLEAS
OF PIKE COUNTY, PENNSYLVANIA

KELLI D. DESANTIS,

PLAINTIFF,

V.

[REDACTED] DESANTIS,

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DOCKET # [REDACTED]
DIVORCE

PETITION TO MODIFY CUSTODY

AND NOW comes the Defendant/Father, [REDACTED]

DeSantis, by and through his counsel, Attorney, Tammy Lee
Clause, and herein files the following Petition to Modify
Custody and in support thereof avers as follows:

1. The Defendant/Father, [REDACTED] DeSantis, (herein
referred to as "**Father**"), is the biological Father, residing at
[REDACTED] Dingmans Ferry, Pike County,
Pennsylvania 18328.

2. The Plaintiff/Mother, Kelli D. DeSantis, (herein referred to as "**Mother**"), is the biological Mother with the last known address of 474 Warren Street Apt 1, Brooklyn, Kings County, New York, 11217.

3. The **Father** respectfully represents that on April 16, 2025, this Honorable Court issued the Memorandum of Understanding. Attached and incorporated as **Exhibit "A"** is a copy of said Order.

4. The Father seeks primary physical custody and shared legal custody of the parties' minor children who is as follows:

K.F.D., (D.O.B 1)

L.W.D., (D.O.B 2)

T.A.D., (D.O.B 3)

5. The minor children are presently in the custody of the Father.

6. The Order of Court should be modified because the Father is seeking shared legal custody and primary physical

custody and avers the Order should be modified for the following reasons:

- a. Mother was arrested on May 1, 2025 for a second DUI, while on ARD from her first DUI.
- b. Mother does not have a home in the state of Pennsylvania and is staying with a neighbor.
- c. Father can provide a stable, loving and wholesome environment for the children.
- d. Father can provide for the children's, social, emotional, intellectual and spiritual growth.
- e. Father provides a routine and consistency for the minor children.
- f. Father can provide for the emotional and physical well-being of the children.
- g. Father can perform all parental duties.
- h. Father can provide for the minor children's education, family life and community.

i. Father has the availability of extended family and friends to assist him.

j. Father desires to keep the siblings together in the same household.

k. It is believed and averred that Mother is attempting to turn the children against Father and is inappropriately speaking about the Father in front of the minor children.

l. Father is more likely to tend to the daily physical development, educational and special needs of the minor children.

m. Father does not use drugs or alcohol.

n. Father does not have any mental health or physical ailments that would prevent him from caring for the minor children.

o. Based upon all the Custody Factors in 23 Pa.C.S.A. § 5328, said factors shall weigh in heavy favor of Father.

7. Father has not participated as a party or witness in any other capacity in any other litigation concerning the custody of the children in this or any other Court.

8. Father has no information of a custody proceeding concerning the children pending in any other Court of the Commonwealth of Pennsylvania or in any other state.

9. Father does not know of a person not a party to the proceedings who has physical custody of the child or claims to have custody or visitation rights with respect to the child who is not part of this litigation.

10. The best interest and permanent welfare of the minor child would be served by granting the Father primary physical custody.

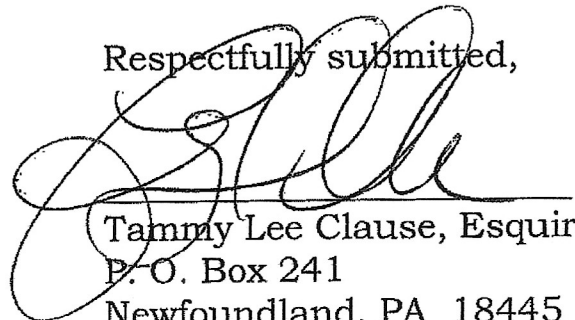
11. Attached and incorporated as **Exhibit "B"** is a copy of the Father's, Criminal/Abuse History Verification.

12. Attached and incorporated as **Exhibit "C"** is a blank Criminal/Abuse History Verification for the Mother.

13. A copy of this Petition for Modification of a Custody Order was mailed to Frank Santomauro, Esquire on June 30, 2025. Attached and incorporated as **Exhibit "D"** is a Certificate of Service.

WHEREFORE, the Plaintiff/Father, ~~_____~~ DeSantis, respectfully requests that this Court grant him shared legal custody and primary physical custody.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'T. Lee', is written over a horizontal line.

Tammy Lee Clause, Esquire
P.O. Box 241
Newfoundland, PA 18445
(570) 676-5212
Attorney ID No. 59858
Attorney for Plaintiff/Father,
Dylan DeSantis.